



Loss of Community Facilities and Open Space Supplementary Planning Document



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City of
Doncaster
Council

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1. Introduction

1.1. Purpose of the Document

- 1.1.1. This SPD has been prepared to clarify the expectations of the Council when planning applications could result in the loss of community facilities and open space. It supports [Doncaster Local Plan](#) Policies 27 (Protecting Open Space and Non Designated Open Space) and 51 (Protection of Education, Leisure and Community Facilities).

2. What is a ‘Community Facility’ and an ‘Open Space’?

2.1. Community Facilities

- 2.1.1. Community Facilities support the day to day needs of residents and workers in the Borough. They contribute to creating sustainable communities and help ensure a good quality of life to the people of Doncaster.
- 2.1.2. The [National Planning Policy Framework](#) (NPPF) refers in various sections to “community facilities” but does not conclusively define in its appendix what these are. The Local Plan (paragraph 13.11) includes a non-exhaustive list of community facilities.
- 2.1.3. [Table 1](#) provides a list of non-exhaustive list of community facilities, as set out in the Local Plan, NPPF, or otherwise. If you are unsure whether your proposal might impact on a community facility, please contact [Planning Services](#) for more advice.

Table 1: Definition of Community Facilities

Local Plan	NPPF	Other?
• Community Centres • Village Halls • Youth Centres • Medical Facilities • Places of Worship • Schools • Children’s Nurseries • Colleges • Indoor Sports / Recreation • Local Authority Offices¹ • Police Stations • Libraries • Theatres • Arts Venue • Care Facilities (any care)	Para 20: • Health • Education • Cultural Infrastructure Para 84 & 93: • “Local” Shops • Meeting Places • Sports Venues • Open Spaces • Cultural Buildings • Public House • Places of Worship Para 187: • Music Venues • Sports Clubs	• Scout / Guide Huts • Fire Stations • Ambulance Stations • Public Toilets • Museums • Post Offices • Transport Infrastructure

- 2.1.4. Where development would result in the loss of any of the above facilities, or in the loss of a building or land last used for these purposes, it will need to be judged against Policy 51 of the Local Plan, which seeks to protect community facilities from being unjustifiably lost.

¹ Not all Local Authority Offices will be considered community facilities, this will depend on the use

2.2. Open Space

- 2.2.1. Open Space falls into two categories: designated (i.e. allocated as open space on the Local Plan [Policies Map](#)); and non – designated (i.e. areas not defined on the Policies Map, often too small to be defined but which still serve an open space function). The majority of the Borough's public open spaces have been defined on the Local Plan Policies Map.
- 2.2.2. Where development would result in the loss of a designated or non–designated open space, it should be judged against Policy 27 of the Local Plan, as well as NPPF paragraph 99.

3. General Approach to the Loss of Community Facilities

3.1. Introduction

- 3.1.1. National and local planning policy guards against the unnecessary loss of valued facilities and services, especially where it reduces the ability of the local community to meet their day to day needs. There is a need to protect the number and distribution of community facilities across the Borough.

3.2. Local and National Policy

- 3.2.1. Local Plan Policy 51 relates to the protection of education, community and leisure facilities, and seeks to retain such facilities for those purposes. It provides four tests by which any proposal for the loss of education, community and leisure facilities will be assessed:
- they are no longer fit for purpose and no alternative community use can be found;
 - there is no longer a need or demand for the facility;
 - alternative provision can be made on another site to the same or higher standard; and
 - the current use will be retained by the development of a small part of the site.
- 3.2.2. Supporting text paragraphs 13.7–13.11 to Policy 51 expand on the interpretation of this policy, notably paragraph 13.9 which elaborates on how the retention of a community use may be proven unviable.
- 3.2.3. NPPF paragraph 93 focuses on community facilities and services for the community generally. Paragraph 93 part c) states that the unnecessary loss of community facilities should be guarded against, particularly where it will reduce the community's ability to meet its day to day needs.
- 3.2.4. NPPF paragraph 84 supports a prosperous rural economy. Paragraph 84 part d) states that in rural areas, decisions should enable the retention and development of accessible services and community facilities.

3.3. When Might the Loss of a Community Facility be Justified?

- 3.3.1. Policy 51 of the Local Plan states the 4 ways in which the loss of land or buildings currently or last used as a community facility might be justified:

51 A): The buildings or land are no longer fit for the purpose which they were being used due to size, layout, design and condition and that no alternative community use can be found

- 3.3.2. It is acknowledged that over time, design standards change and buildings that once were fit for their intended purpose may not be fit for modern requirements, or may be unable to meet modern standards. It is not, however, the case that just because a building is old it is no longer

fit for purpose – there are a number of ways buildings can be adapted or retrofitted without necessarily losing the building's community use. This is often the most sustainable approach.

3.3.3. Applicants who wish to justify the loss of a community facility due to it no longer being fit for a community use will need to demonstrate why this is the case. Reasons may include:

- **Size:** the building is either too large or too small for continued community use.
- **Layout / Design:** the building's internal layout is unsuitable for modern standards for community use and cannot easily be adapted or altered to rectify this issue. For example, there may be numerous rooms where open plan would now be required; partitioning or opening up the space is not feasible; or the building cannot be made accessible for all users, including those with disabilities.
- **Condition:** the building is in a demonstrably poor condition (supported by appropriate surveys) or has fallen into a state of disrepair which renders it unusable and which cannot be viably rectified.

3.3.4. In such cases, applicants will be required to demonstrate that they have proactively explored opportunities for an alternative community use for the site. This does not have to be the same as the current community use.

3.3.5. This will require applicants / owners to prove they have liaised with, and offered at a demonstrably reasonable price (see paragraph [3.3.8](#) on marketing), the property to local community groups or alternative community services providers. This information should form part of marketing evidence and be submitted alongside the planning application.

3.3.6. Documented details should be provided such as who was contacted, when and what was offered (with copies of any relevant correspondence), alongside a more general summary of attempts and responses to finding an alternative use.

51 B) There is no longer a need or demand for the facility

3.3.7. This will require a significant amount of justification and proof to ensure that the Council is satisfied that all potential options for retaining this facility have been explored and the property has been *marketed* reasonably.

3.3.8. Paragraph 13.9 of the Local Plan sets out the marketing requirements for community facilities. The section below elaborates on how the Council expect this to be demonstrated, and should be addressed in a marketing report which the Council will consider as part of the application:

- **The site must be marketed for a minimum of 12 months.**
 - Applicants must provide start dates for all marketing and show that the site has been marketed for at least a year prior to the application.
- **Traditional and web based marketing, regular advertisements in local, regional and / or national publications as appropriate.** This means:
 - Evidence of clear advertisement boards on the premises stating it is for rent or sale for a community purpose, with clear details of where more information is available.

- Traditional marketing methods includes proof of advertisements in the local press and advertisements in appropriate trade magazines / journals for acceptable uses for the site (i.e. community uses), as well as estate agents.
- Web based marketing methods include advertisements on appropriate trade websites for the use; more general property advertising websites; and via [Business Doncaster](#) who can advertise the property using their [website marketing tool](#) and promote the property on social media.
- Regional and national publications should be well known property marketers where the property will be more likely to be viewed, in addition to more targeted advertising on appropriate trade websites.
- Documented and proven attempts which show the disposal of the facility to other targeted providers, charities, social enterprises etc. have been explored, including proof of correspondence or a list of who was contacted, offered what, and what the response was.
- **Consultation with the local community has been undertaken.** This means:
 - The local community must be directly consulted with about the proposed loss of the community facility - in addition to the usual consultation that must be undertaken on any planning application.
 - This includes asking the local community if they know of, or can suggest, any viable opportunities to retain the site for community use. [The definition of local community will be assessed on a case-by-case basis but could include, for example, the local parish; neighbourhood plan boundary; properties within appropriate walking distance].
 - The applicants have summarised and responded to consultation feedback as part of the application, confirming whether or not any suggestions were viable (and if not, why).
- **Opportunities to re-let premises have been fully explored including the formation of social enterprise of charitable group that can take over the premises.** This means:
 - The applicants, in trying to market the site, have approached local community groups or charities (as above) to ascertain whether they would wish to purchase or take over the running of the building and therefore retain its community use.
 - There is proof of correspondence or a list of who was contacted, offered what, and what the response was.
- **The premises / site have been marketed at a price which is commensurate with market values (based on evidence from recent and similar transactions and deals).** This means:
 - Applicants should assess recent sales information for similar transactions (taking into account, for example, uses, type of building, size and the location, the quality of the building and the current state of the market etc.) and present a reasoned case of how they decided on the price the property should be marketed for (taking account of its condition in relation to those benchmarked against).

- Unless the property is notably better or worse than the properties it is benchmarked against (in which case this should be justified), marketing it using an average price as an indicator would be acceptable.
- Applicants are encouraged to speak to the local planning authority prior to marketing the site to get agreement that the proposed price for marketing the site is acceptable and has been fairly calculated. This would reduce the risk of a year-long marketing exercise being deemed unacceptable after it is completed and needing, therefore, to be re-run.
- **It has been demonstrated that the terms and conditions set out in the lease are reasonable and attractive to potential businesses; and that no reasonable offer has been refused.** This means:
 - Details of the terms and conditions of the lease terms offered are provided and notable terms are justified (i.e. rent, service charges etc.).
 - Details are provided of any offers, and if they were refused, the reason why is provided.

51 C) Alternative provision can be made on another site to the same or higher standard in terms of quantity, quality and community benefit

- 3.3.9. It may be acceptable to lose a community facility to an alternative use if the community use is proposed to be replaced on another site.
- 3.3.10. The Council need to be confident that the alternative provision will come forward to be satisfied that it is acceptable for the original building to be lost to an alternative use. This could, for example, include applicants being required to show that the alternative provision has been secured, or is progressing towards, planning permission or its development is underway.

51 D) The current use will be retained and enhanced by the development of a small part of the site

- 3.3.11. Occasionally, it may be possible to develop part of the site for an alternate use, which in turn can help retain and enhance the community use. If seeking to justify the loss of part of the community facility or site for this purpose, a quantifiable enhancement to the remaining community facility or site must be demonstrated – it is not enough for the development to simply maintain the facility as it is.
- 3.3.12. In accepting the loss of a small part of the site or facility for a development, it must be demonstrated that the loss will not affect the long term viability of the community facility, or constitute an attempt to incrementally develop the site for an alternative use by later claiming it is unviable or unsuitable.
- 3.3.13. The proposed amount of space to be lost to development should also only constitute a small part of the wider facility or site, thus ensuring the predominant primary use of the site remains a community facility.

4. Loss of Education Facilities and Associated Playing Fields

4.1. Introduction

- 4.1.1. Education facilities, including school playing fields, are defined as community facilities and therefore any proposed loss of these will be subject to the tests set out in Policy 51 of the Local Plan (see [Section 3](#)). There are, however, additional requirements when a school or playing field is to be lost.

4.2. Local and National Policy

- 4.2.1. Local and national policy includes Local Plan Policy 51, and NPPF paragraphs 93 and (where relevant) 99. These are elaborated on in Section [3](#) and [6](#) of this SPD.
- 4.2.2. However, in addition to this, changes to education facilities have to have regard to government guidance contained within '[Involving the Secretary of State in Land Transactions](#)' – which is designed to help applicants understand what level of agreement, if any, may be required from the Secretary of State and what other obligations exist when disposing of education facilities, or associated land and buildings.
- 4.2.3. The requirements of the Secretary of State's guidance are not repeated in this SPD. Applicants should refer to the above guidance when their application involves education facilities, including land or buildings last used for this purpose.
- 4.2.4. It should be noted that the failure to involve the Secretary of State when they should have been involved in a decision is a serious matter, so both applicants and Council officers must exercise a cautious approach when dealing with such applications. Where Secretary of State consent is required, no transaction or occupation of the land by a third party should take place before consent is granted.
- 4.2.5. Certain development may fall under that permitted by a General Consent Order, generally more minor land transactions or short-term changes of use. Guidance is available in the aforementioned document 'Involving the Secretary of State in land transactions', and can be applied for by submitting an [application form](#).

5. Loss of Public Houses

5.1. Introduction

- 5.1.1. Pubs have long been an important part of communities, providing opportunity for people to mix and socialise, and aiding social cohesion. Whilst these benefits remain, societal shifts have, over time, led to some pubs struggling to remain as viable businesses.
- 5.1.2. Pubs are now faced with competition from supermarkets, changing attitudes to drinking, and the impacts of Covid-19 and lockdowns on the hospitality sector and people's social habits. This can lead to some pubs closing, or businesses failing, and therefore owners looking to apply for a different use for the site.
- 5.1.3. The Council believes pubs can still play a valuable role in its local communities, and local communities often see these as significant community assets worth preserving. However, in the modern climate, it is also accepted that it may not be possible for pubs to be run as viable or profitable businesses which often leads to closure and decreasing prospects of reopening.

5.2. Local and National Policy

- 5.2.1. Local and national policy includes Local Plan Policy 51, and NPPF paragraph 93. These are elaborated on in [Section 3](#) which also applies here.
- 5.2.2. Pubs are now defined as 'sui generis' in the Use Classes Order, i.e. in a class of their own. This has removed a number of the 'permitted development rights' that existed under the former Use Classes Order.

5.3. Definition of a 'Public House'

- 5.3.1. As pubs have sought to diversify their offer, they increasingly provide alternative services – such as the sale of hot food, the provision of rooms available for hire or even the inclusion of facilities such as post offices. They may also have other uses attached to them, such as hotels.
- 5.3.2. Often the line between what is a pub and what is a restaurant can be blurred; and this can have a knock on effect when assessing the loss of pubs as a community facility. As pubs now fall under their own sui generis use class they cannot change to another use without permission. However, restaurants fall under Use Class E and, as such, are permitted to change to a range of uses which fall under Class E as well as residential (within limits).
- 5.3.3. This can lead to debates at planning application stage about what is a pub and what is a restaurant given the two can often be delivered together and restaurants can change their use more easily (and so it is often argued that business is a restaurant).
- 5.3.4. To help clarify, Doncaster Council adopts the position of the Campaign for Real Ale (CAMRA), which is that:

“A pub is a venue where you can buy a drink without being required to purchase a meal.”

- 5.3.5. Applicants who wish to argue that the business is, or was, a restaurant rather than a pub will have to demonstrate how and why the business does not comply with, the above definition.

5.4. Matters to Consider when Proposing the Loss of a Pub

- 5.4.1. When submitting an application which will result in the loss of a pub, the case officer will weigh up a number of factors based on evidence submitted by the applicants. It is often argued that the loss of a pub is justified because it cannot operate any longer as a commercially viable business. This may be the case, but the Council will not accept this argument at face value.
- 5.4.2. It is not the case that because an alternative use may generate greater income, or because the development value of a site for an alternative use is high, that the pub business itself is unviable.
- 5.4.3. The Council will instead expect to see demonstrable proof that the pub is unviable, and that efforts have been made, where possible or appropriate, to change the business model to increase its viability. This might include, for example:
- Diversifying the offer, such as serving food if it does not already do so, or considering if a dual use (such as adding a B&B offer, or providing a service such as a post office within the pub) can increase the customer base.
 - Whether the pub has attempted to diversify its customer base or attract new customers, for example quiz nights, having an affiliate sports team, or offering spaces for groups to hire or meet in.

- Whether the pub has explored alternative opening hours (either increased or decreased) to try and increase viability.
 - What has been done to promote the business and bolster interest in the pub? This could be additional advertising or promotion, and offers or means by which the owners have attempted to diversify the offer.
 - Whether attempts have been made to diversify the range of drinks or produce sold.
 - Whether there is scope to expand the pub, either by using redundant buildings or other underutilised external spaces, and whether this would help the business.
- 5.4.4. It will also be expected to be demonstrated that the pub has made reasonable efforts to improve its attractiveness, such as re-decorating any tired décor or improving the external appearance and outdoor areas.
- 5.4.5. Other matters may be factored in, for example a chain pub may not view a pub as a viable business due to their operating models, but this does not mean it could not be run as a viable business by an alternative chain or independent landlord, who may have lower expectations of what constitutes 'viable'. Applications which will result in the loss of the pub will be expected to demonstrate these avenues have been explored.
- 5.4.6. The Council will also consider carefully whether applications to make other changes to a pub (such as losing upper stories, kitchens, meeting rooms or car parking) may affect the long term viability of the business, and whether these constitute the start of longer term attempts to redevelop the whole property, by later claiming the pub is not viable. Applications for partial redevelopment will need to demonstrate how this will either not affect, or will improve, the long term viability of the pub.

6. Loss of Public Open Space

6.1. Introduction

- 6.1.1. The Council will resist any development which results in the loss of open space, especially in areas where there is deficiency (as measured in the Green Space Audit). Open spaces provide valuable recreational opportunities for communities and have significant physical and mental health benefits. Once open spaces are lost, they are gone for good.
- 6.1.2. However, local and national policy does provide for ways in which losses of open space may be justified in certain circumstances. For more information about providing new open spaces, please see the [Technical and Developer Guidance SPD](#).

6.2. Local and National Policy

- 6.2.1. Local Plan Policy 27 relates to the loss of both designated and non-designated open space, and potentially acceptable development within them. For the loss of open spaces, Policy 27 part d) stipulates that a public consultation should be carried out on any proposal which results in the loss of open space, and then also defers to national policy. Open spaces are identified on the [Local Plan Policies Map](#).
- 6.2.2. National Policy refers specifically to NPPF paragraph 99, which states three separate ways in which building on open space may be justified:

- a) an assessment has been undertaken which has clearly shown the open space, buildings or land to be surplus to requirements; or
- b) the loss resulting from the proposed development would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location; or
- c) the development is for alternative sports and recreational provision, the benefits of which clearly outweigh the loss of the current or former use.

6.2.3. [Planning Practice Guidance](#) notes that Sport England must be consulted in certain circumstances and that it is advisable they are consulted in others. It is for planning authorities to consider whether other consultees should be engaged.

6.3. Potentially Acceptable Development on Open Space

6.3.1. Policy 27 part A states that the development on open spaces may be supported if the development is for sports and recreation facilities. These may include, for example, playgrounds, changing rooms / pavilion or small cafes where these are for users of the open space.

6.3.2. Three conditions must be met:

27 A1) There is no loss of open space such as playing fields or sports pitches

6.3.3. If the new development is not replacing an existing building, then it is likely it will result in a loss of open space. The intention of the policy is to protect the most useable parts of wider open spaces from development for sports and recreational purposes. Potential harm, regarding loss of open space, resulting from proposals, even if for sports and recreation purposes, will be particularly assessed where land:

- is used for sport (football pitches, basketball courts etc.).
- is used as an equipped play area.
- is open and can be used for various recreational purposes (i.e. fields).
- generally could be used for sport or recreation.

6.3.4. When development for an open space or recreational purpose is located in less intrusive locations within a wider open space, this is more likely to be supported in principle. For example:

- on land towards the periphery of open spaces, where the development would have notably less impact on the overall use of the open space due to using less useable areas.
- in locations which are screened (or can be screened i.e. by trees or vegetation), where recreation is likely to be impacted the least and the visual amenity can be retained.
- on land which is clearly not used for sport or recreation (i.e. dead spaces behind existing buildings; unsightly areas (generally peripheral) which are not grassed or notably useable, or which could be made so).
- smaller more incidental spaces which are not of a shape or size to be used for any notable recreational purpose and could not be made into useable open space.

- 6.3.5. Where the above apply, the development should only result in a small loss to the overall open space.
- 6.3.6. Where the above proves to be the case, then this may not constitute a loss of the more useable types of open spaces that the policy refers to. Ultimately, this will be a judgement made by the case officer in discussion with other relevant open space officers.

27 A2) Visual amenity is retained and enhanced

- 6.3.7. Given the nature of open space, it is possible that development will have an impact on the overall visual amenity of the open space. Often, open spaces will contain large areas of grassland or other low lying vegetation which provide open vistas and wide ranging views across them. In some cases, it will be possible to see from one end of an open space to another with relatively uninterrupted views.
- 6.3.8. The impact of new development for sports and recreational purposes on the visual amenity must be carefully considered. The general preference is that ancillary buildings, such as sport changing rooms, necessary to be located within open spaces should be located in more peripheral locations where the impact on both the usability and the visual amenity of the open space can be lessened. Well screened locations are preferred to positioning buildings in more open locations as generally this can help mitigate the visual impact. Peripheral locations close to existing footpaths or other built form are generally logical locations for further development.
- 6.3.9. Applicants may feel that there is no option but to locate an ancillary use in a more prominent location, due to it being deemed necessary for these to be close to the use they serve (i.e. changing rooms close to a sports pitch). In such cases, the impact on the visual amenity of the immediate area and the wider open space must be carefully considered, addressed, and the location fully justified.
- 6.3.10. Sensitive design of buildings can ensure the impact of the development on the wider space is minimised. In addition to the location, consideration should be given to the height, massing and form of new buildings. They should be of a size and scale suitable to the location and should not dominate or detract from the surrounding landscape. Buildings should only be as large as is necessary for the use, and should only include internal features which are linked to their purpose. The overall design including the façade should be carefully considered, having regard to the overall setting of the building.
- 6.3.11. It is possible that buildings can enhance visual amenity, for example where they are replacing temporary structures such as shipping containers with something more permanent, or replacing a dilapidated existing building with a new one.

27 A3) The environmental and ecological value is retained and enhanced

- 6.3.12. Any proposed development should avoid areas of ecological value and ensure important ecological areas or features are retained and not impacted by proposals.
- 6.3.13. Sites must meet the requirements of Biodiversity Net Gain, as set out in Policy 30 of the Local Plan and elaborated on in the [Biodiversity Net Gain SPD](#). This is a normal requirement of development and is in addition to the separate requirement of Policy 27 that the ecological value of a site is enhanced.

- 6.3.14. In order to comply with this part of the policy, development will have to prove it is delivering above and beyond the required 10% biodiversity net gain (using the relevant metric) to demonstrate how this has been achieved. Where a site is proposing to meet the 10% biodiversity net gain off-site, the metric should be used to show how the site itself will deliver ecological enhancement (i.e. the requirement of Policy 27 cannot be met off-site even if the wider biodiversity net gain requirement is).

6.4. Other Suitable Uses on Public Open Space

- 6.4.1. Proposals for new open space uses on existing open spaces will generally be supported, providing they enhance the space, improve the site and its overall offer, and provide benefits to the users of the space. This could include new play areas or new multi-use games areas (MUGAs).
- 6.4.2. In the case of new play areas, certain development falls under 'permitted development rights' if the applicant is the Local Authority or a Town / Parish Council, and therefore may not require planning permission if certain conditions are met. Please see [Appendix A](#).

6.5. Temporary Structures on Public Open Space

- 6.5.1. The Council acknowledges that it may not always be viable in the first instance to provide new buildings for sports and recreational purposes – for example, for the storage of equipment or changing facilities. Permanent facilities require funding to deliver and ongoing maintenance and upkeep.
- 6.5.2. One cost effective and common solution is the use of temporary structures such as shipping containers or portacabins. However, such structures can be unsightly, and can attract vandalism and antisocial behaviour. In certain circumstances the Council may deem these to be a suitable short term solution and may grant temporary permission for their siting and use for an ancillary purpose within the open space when this is justified through the application.
- 6.5.3. However, in these circumstances, the Council will apply conditions related to colour (dependent on the location and surroundings, but green is generally preferred as the most inconspicuous colour) and maintenance and upkeep. The Council will only grant temporary planning permission, usually limited to a maximum of five years. This will ensure that temporary buildings do not become potentially unsightly permanent features, and furthermore is intended to give the applicants time to deliver more permanent solutions to meet the need for a new permanent building.

6.6. Non-Open Space Development Proposals on Open Spaces

- 6.6.1. The Council will resist the loss of open space to non-open space uses, especially where the Green Space Audit shows an area is deficient in open spaces. However, the Council does acknowledge that not all open spaces are used or valued by local communities in equal ways. This is generally truer of smaller 'amenity' or incidental open spaces than larger 'park' type open spaces.
- 6.6.2. When development is proposed on either designated or non-designated open spaces of any kind, which is not for an open space or ancillary use, then Policy 27 part d) applies. This states that the development of open spaces will only be supported in accordance with national policy and where community support is demonstrated through a consultation. To meet the requirements of NPPF paragraph 99 and Local Plan Policy 27 part d), applicants would need to demonstrate that:

a) an assessment has been undertaken which has clearly shown the open space, buildings or land to be surplus to requirements

- 6.6.3. NPPF paragraph 99 a) is partially enshrined in Policy 28 part d) by virtue of the latter requiring a consultation to be undertaken on the loss of open space, which would help demonstrate the land is surplus to requirements.
- 6.6.4. In addition to undertaking a consultation, applicants for development resulting in a loss of open space may wish to refer to the Council's most recent [Green Space Audit](#) and [Open Space Map](#) for more information about local provision and deficiencies in local open space. In doing this, it should be borne in mind that an application which results in the loss of open space will put increased pressure on other spaces due to both the loss of the space, and, if being proposed to be lost to housing, additional population requiring open spaces to meet their needs.
- 6.6.5. An example proforma for a consultation on the loss of open space is provided in [Appendix B](#).
- 6.6.6. It is important to note that when this is undertaken, it is a separate consultation process to the statutory planning consultation which must also be undertaken with neighbouring residents and businesses regarding the proposed development. The intention of this consultation is specifically that the focus is on the loss of open space and to ascertain the value of the land proposed to be lost to the local community as an open space, as opposed to the acceptability of the proposed end use. Questions for the consultation should therefore focus on the value of the area as an open space not whether the proposed use is preferable to the existing one.
- 6.6.7. There are a variety of ways in which a consultation could be undertaken, including:
- Letter drops to local residents within a prescribed distance (see Table 2 below) of the site (with QR code links to online surveys).
 - Online surveys.
 - Onsite consultations with users of the open space.
- 6.6.8. The scale and catchment of the consultation, and the number of people that should be targeted by a consultation, will vary depending on both the nature and significance of the space being lost, its size, and the scale and type of the development proposal. The open space officer will advise on the exact requirements for each consultation on a case by case basis, however, indicatively, the following buffers will apply:

Table 2: Loss of Open Space Consultation Buffers

Proposal (loss of open space in m ²)	Accessibility Buffer (based on 'walking distance standard')
Up to 100m ² lost	60m
Between 101m ² and 1599m ²	240m
1600m ² and above	700m

- 6.6.9. The Council will expect the consultation to be accompanied by a brief statement which includes information on:
- The method(s) used to consult.
 - The number of residences consulted directly, notices placed, people spoken to etc.

- The number of overall responses.
- A breakdown of the answers to each question (x % were in support, x % were opposed and x % provided no view, etc.).
- A summary of any additional comments provided.

6.6.10. Raw data should also be provided if requested.

6.6.11. Based on this information, the case officer and open space officer will come to a view about whether the feedback demonstrates 'community support' as per Policy 27 d). There is no hard and fast rule to deciding this as it is too simplistic to say that being over or below a certain percentage constitutes community support or not. This will instead form part of the wider planning judgement about the acceptability of the proposals.

b) the loss resulting from the proposed development would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location

6.6.12. NPPF paragraph 99 b) provides another way in which the loss of open space may be deemed acceptable, that being when the loss is replaced by equivalent or better provision in a suitable location. In this instance, a suitable location means within, or within close proximity (based on suitable walking distances), of the community where the loss is occurring, so that the community will continue to benefit from the provision of open space locally.

6.6.13. "Equivalent or better" means either a like for like replacement in terms of size and type of open space or replacement with enhanced facilities that are a clear improvement on what is being lost. This should have full regard to the type of open space being lost and the local open space deficiencies and needs, as assessed in the Green Space Audit.

c) the development is for alternative sports and recreational provision, the benefits of which clearly outweigh the loss of the current or former use

6.6.14. Finally, NPPF paragraph 99 c) provides a way by which open space can be lost to alternative sports or recreational provision, if the benefits clearly outweigh the loss of the current or former use.

6.6.15. This will be decided on a case by case basis with clear justification via an assessment of the current and proposed uses, provided to the case officer to consider when determining the planning application.

6.7. 'Privatising' Public Open Space

6.7.1. In more recent years, the Council has reached agreements with some local sports teams or community groups which allows them to lease the open space from the Council and effectively take over control of the maintenance and upkeep of the space, generally on the understanding the space can be used by the team and group for their own sport and recreational reasons, such as a 'home ground' for a football or rugby club.

6.7.2. It is often found that the use of the space for the purposes intended by the groups or teams can be hampered by problems related to the wider established use as a public open space, such as dog fouling or wear and tear associated with other uses being undertaken on the fields. This leads to some seeking permission from the Council to erect fences to prevent wider public access and alternative uses and retain the pitch or space for the purposes associated with the lease.

- 6.7.3. Whilst the Council understands and sympathises with this issue, the Council does not wish to see the erection of tall fences or padlocked gates which prevent the wider public from accessing the site where the space is a defined public open space.
- 6.7.4. As a compromise, and with final decisions being made on a case by case basis, the Council may be willing to allow in principle the erection of lower level boundary fencing (such as 1m high rails or bow top fencing) which is not locked and includes access points for the area being fenced off to be accessible to the public.
- 6.7.5. The idea is that rather than preventing access, it is discouraged, or that people are encouraged to respect the primary use of the land. This way the land remains public but defined for the use it has been leased for.
- 6.7.6. Fence heights are controlled by 'permitted development rights'. Where the open space land is in the ownership of the Council, and leased to a community sports association, erecting fencing around the playing pitch or open space would require the agreement of the Council.
- 6.7.7. Fences above one metre when adjacent to a highway, or two metres or more elsewhere, require planning permission. If also aiming to make a public open space "private" this would be subject to a change of use application, as it is deemed to be a loss of open space and subject to the same rules and scrutiny other development resulting in the loss of open space would be, in line with Policy 27.

6.8. Loss of Sports Pitches

- 6.8.1. Sports pitches which are not related to a school (see [Section 4](#)) are recorded as a type of open space and therefore fall under Policy 27 of the Local Plan.
- 6.8.2. Any loss of sports pitches will be likely to be unacceptable and should only ever be a last resort. Sport England, as a statutory consultee on the loss of sports pitches, are also likely to object. In the first instance to the loss of sports pitches, or land last used as a sports pitch. The preference would be for the open space function to be retained by changing the use to another open space type. Please refer to Sport England's [Playing Fields Policy and Guidance for more information](#).
- 6.8.3. Alongside being assessed against the requirements of Policy 27, which is elaborated on in [Section 6.6](#), where there is a proposed loss of a sports pitch, applicants will need to provide evidence as to why this is appropriate to be lost, for example using information in the [Green Space Audit or Playing Pitch Strategy](#).
- 6.8.4. Additional information on pitch provision in the Borough for a range of sports can be found in the [Playing Pitch Strategy](#). Applicants for proposals which involve the loss of formal sports pitch provision should consider this strategy which assesses sports provision in the Borough. This strategy will also be referred to by the officers considering any proposed loss.

6.9. Loss of Allotments

- 6.9.1. Allotments are recorded in the Borough as a type of open space and therefore fall under Policy 27. Some allotments are privately owned, in which case this section does not apply, although wider loss of open space considerations in [Section 6](#) do apply.
- 6.9.2. When land is owned by a Council (local, parish or town in the case of Doncaster), and was purchased or appropriated for use as allotments, and where the land has not been designated for another purpose prior to its use as allotments, then such sites are 'statutory allotments'.

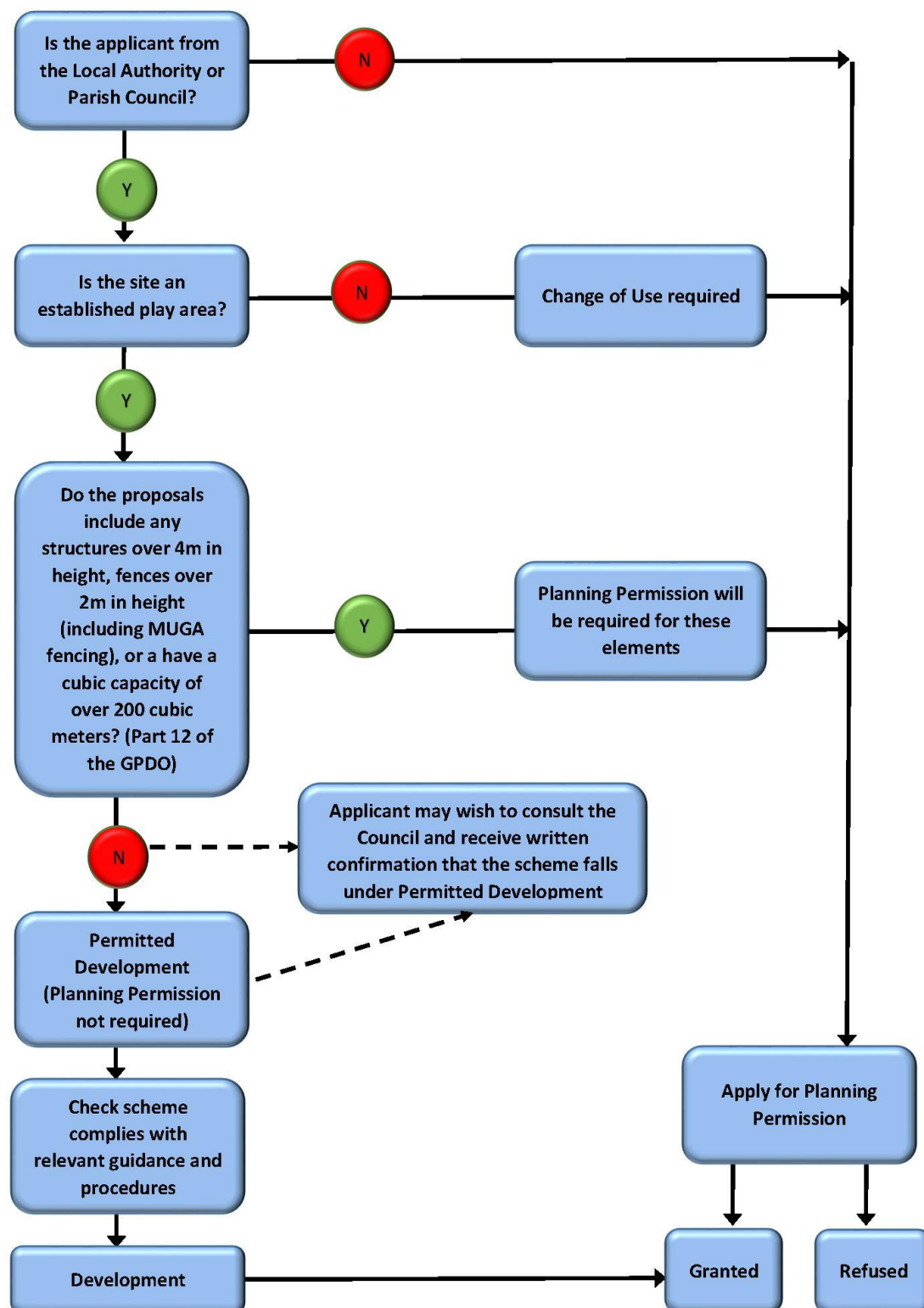
Disposal of 'statutory allotments' must be agreed by the Secretary of State as per the [1925 Allotment Act](#). This is in addition to meeting the requirements of Policy 27.

6.9.3. Applications which result in the loss of a 'statutory allotment' will need to satisfy the Secretary of State that:

1. adequate provision will be made for allotment holders displaced by the action of the local authority; or
2. such provision is unnecessary; or
3. such provision is not reasonably practicable.

6.9.4. Guidance can be found in the [Allotment Disposal Guidance: Safeguards and Alternatives](#). Doncaster Council also has an [Allotments Officer](#) who will be able to assist with advice and queries.

Appendix A – Flow Diagram for Play



Appendix B - Example Questionnaire on the Loss of Open Space

Proposed loss of [x ha] of open space at [location] for [description of development]

The area on the plan below is currently identified in the Doncaster Local Plan as Public Open Space:

[Provide map showing whole open space red line boundary]

There is a proposal to build [development typed] on the area identified on this plan, which would result in a loss of part of the open space [(x %) of the space], adjacent to the courts and play area, as shown below:

[Provide a map which clearly shows the exact location of the proposal within the wider context of the open space]

Local planning policy requires any proposed loss of open space to be consulted on locally. As such, we are writing to understand if and how you use this space, in order to understand if its loss may be justified.

Please could you fill in the questionnaire below and return to:

[provide an email or postal address etc. for responses]

Questionnaire:

1. Please provide your postcode:

2. How far do you live from the open space?

Less than 5 mins walk	5 – 10 mins walk	10 – 15 mins walk	15+ mins walk	Comments:

3. Do you or your children (if applicable) use the area proposed to be lost for any of the following?

Sport	Children's Play	Dog walking	Other recreation (specify in comments)	Comments:

4. Do you use the space for any other reason?

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5. Would you support the loss of part of the open space at (location) for the development of (development proposal)?

Yes	No	Comments

6. Do you wish to make any additional comments?

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